

March 16, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 2709
(TWENTY-SIXTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 1.1C, 1.1D and 1.3C liquid explosives and a Division 6.1 material in both UN specification and non-specification packagings. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.24(c) and 173.62 in that the packaging is not authorized, § 173.54(e) in that trimethyloethane trinitrate is forbidden for transport and § 177.834(1)(1) in that the use of a cargo heater is prohibited, except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008 and additional information dated October 31, 2011.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Substances, explosive, n.o.s.	1.1C	UN0474	II
Substances, explosive, n.o.s.*	1.1D	UN0475	II
Substances, explosive, n.o.s.	1.3C	UN0477	II
Dichloromethane mixture (contains nitrodiphenylamine)	6.1	UN1593	III

*Additional restrictions in Paragraph 7.b.(2) for a specific packaging.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging must be a DOT specification or non-DOT specification container described as follows:

(1) UN Specification 6HA1 metal drum with a rated capacity of 30 gallons. Drums must be palletized, four drums to a foam-plastic or wooden skid. The drums must be secured to the skid as described in the Department of the Navy's letter dated November 13, 1981.

(2) Non-DOT specification drum constructed in accordance with Allegheny Ballistics Laboratory Drawings Nos. 1343-K and 9652-F. Drums must be securely attached to strong wooden skids. Each drum must not exceed 125 gallons capacity, nor contain more than 850 pounds of the material.

(3) Specifically designed container constructed as described in Hercules Powder Company, Incorporated, Allegheny Ballistics Laboratory, Rocket Center, West Virginia, Drawings ABL-7923, ABL-7924-B, ABL-8200, ABL-

9652, and ABL-9653 (skid). Capacities of these containers are limited for transportation to 600 pounds.

(4) Desiccators described in Radford Arsenal Drawings Nos. HRP 37-7946, HRP 37-4130-A, HRP 37-4130-B, HRP 37-7947, and HRP 37-4167, on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). Also in desiccators (not to exceed 1,000 pounds DEGDN capacity) described in Radford Arsenal Drawings Nos. 20220, 24015, on file with OHMSPA. Also in desiccators described in Hercules Incorporated, Magna, Utah Drawing No. 83282J00231 Revisions H and J on file with the OHMSPA.

b. ADDITIONAL SAFETY CONTROL MEASURES FOR PACKAGINGS IDENTIFIED IN DRAWINGS ABL-7923, ABL-8200, ABL-9652, 20220, AND 24015, on file with OHMSPA:

(1) Dichloromethane mixture (contains nitrodiphenylamine) identified in Paragraph 6 above is only authorized to be transported by motor vehicle in packaging Drawings ABL-7923, ABL-8200, ABL-9652 and in desiccators (not to exceed 1,000 pounds DEGDN capacity) described in Radford Arsenal Drawings Nos. 20220, 24015, on file with OHMSPA under the terms of this special permit.

(2) Substances, explosive, n.o.s. (UN0475) (containing nitroglycerine, dichloromethane or nitrodiphenylamine) in the packaging identified in Drawing ABL-9652 may only be transported by motor vehicle under the terms of this special permit.

c. OPERATIONAL CONTROLS -

(1) Testing requirements for the scenario identified in Paragraph 7.b. above under the terms of this special permit must conform to the following:

(i) Drums must be hydrostatically tested to 120 psia at the time of manufacture.

(ii) Each drum must be hydrostatically tested at five year intervals in accordance with the conditions of § 178.605 with a test pressure of 35 psig.

(iii) Each drum must have the welds dye penetrant inspected at five year intervals.

(iv) Each drum must be visually inspected for defects prior to use.

(2) Wire tying of container closures is limited to soft (rubber or rubber-like material) plugs, each to have a metal backing plate extending across its top surface, with tying holes matching those in the flange of the opening. At least two wires, No. 6 gauge aluminum or equivalent must be used on each closure.

(3) Containers must be inspected before each shipment for leakage, and containers showing defects which might result in leakage during transit must not be continued in this service. Closing and/or venting devices must be of such design that leakage will not occur during transportation; they must be so constructed that the liquid will not be subjected to friction or impact between any two metal surfaces.

(4) Vehicle used must be a tractor-trailer combination having a minimum design load capacity of not less than 3,500 pounds per square foot (full trailers not authorized). If the vehicle is equipped with a heating or refrigerating unit, it must meet the conditions specified in § 177.834(1)(2)(iii)(A) except paragraph (4). DEGDN, nitroglycerin/diethylene glycol mixtures, and nitroglycerin/triacetin mixtures must be transported in vehicles maintained at a temperature of not less than 60°F. In any case, the temperature must be controlled so that there is no separation of any component of the mixture during transportation. Also vehicle shown in Hercules Incorporated, Magna, Utah Drawing No. 083-0711-52006-5BU-01 and modified by Engineering Orders Nos. 13628 and 13910 on file with the OHMSPA may be used. The net load may not exceed 39,600 pounds.

(5) Trimethylolethane trinitrate must be shipped in temperature controlled vans in which the temperature may not be less than 35°F nor more than 100°F. Temperature control units must comply with § 177.834(1)(2)(iii). Temperature control is not required when it has been demonstrated by test that

there is no difference in the sensitivity of the liquid, the solid (frozen) and a mixture of liquid and solid.

(6) Lading in motor vehicles must be inspected not less than once every hundred miles while in transportation to see that the containers are not leaking. Each shipment must be routed straight through as a continuous trip without stopover or layover except as necessitated by mechanical failure or adverse weather conditions.

(7) More than one type of liquid explosive is authorized on a motor vehicle provided that:

(i) the liquid explosives are authorized for shipment under this special permit;

(ii) they are packed in authorized packagings; and

(iii) their compatibility groups are authorized for mixed stowage by § 177.848.

(8) Transportation by vessel is permitted only for the Division 1.1C, 1.1D and 1.3C liquid explosives described in paragraph 6 above which are packaged in accordance with paragraph 7.a. and c. and; have a freezing point of -10°F (-23°C) or colder, except as provided in the last sentence of paragraph 7.c.(4).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Transportation by motor vehicle under a government bill of lading or government commercial bill of lading may be performed only by motor carriers specifically approved by the U.S. Department of Defense, Military Surface Deployment

and Distribution Command. This requirement does not apply to motor vehicle shipments made under a commercial bill of lading.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: mn:dl